

Court No. - 32

Case :- WRIT - C No. - 38462 of 2019

Petitioner :- Khalid

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Singh

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Shashi Kant Gupta, J.

Hon'ble Neeraj Tiwari, J.

The case called out. None appears on behalf of the petitioner even though learned counsel for the Electricity Department is present.

This writ petition has been filed, inter alia, for the following reliefs:-

"(I) Issue a writ, order or direction in the nature of certiorari quashing the recovery certificate dated 15.06.2019 of Rs.39,290/- issued by respondent no. 3 (Annexure No. 1 to this writ petition).

(II) Issue a writ, order or direction in the nature of mandamus commanding the respondents specially respondent no. 3 to not harass the petitioner in pursuance of recovery certificate dated 15.06.2019 of Rs.39,290/- issued by respondent no. 3 and also be directed to respondent no. 3 to hear and decide the application dated 12.07.2019 within a stipulated period of time. "

Heard learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

In view of the above, we are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 20 days from today, his application may be considered and decided by the said authority within 30 days by a speaking order.

For a period of 50 days or till the matter is decided by the authority concerned, whichever is earlier, recovery proceedings initiated against the petitioner shall remain stayed.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 26.11.2019

Arun